IN THE SUPERIOR COURT OF JUDICATURE IN THE HIGH COURT OF JUSTICE SOWUTUOM, ACCRA HELD ON THURSDAY, 12TH DAY OF JUNE, 2025 BEFORE HER LADYSHIP, JANE HARRIET AKWELEY QUAYE (MRS.), JUSTICE OF THE HIGH COURT

SUIT NO. E1/HC/E1/32/2025

IN THE MATTER OF APPLICATION FOR COMMITTAL FOR CONTEMPT OF COURT

AND

REPUBLIC

VRS

FRANCES OBENG MENSAH] RESPONDENT

EXPARTE:

1. THEOPHILUS AFFUL
2. IGREEN AWELE AFFUL] APPLICANT

JUDGMENT

A motion on notice, for an application for contempt was filled on the 27th day of February, 2025 at the Registry of this court on behalf of Theophilus Afful and Igreen A Afful (hereinafter known as the Applicants) against Francis Obeng Mensah (hereinafter known as the Respondent). The 1st applicant Theophilus Afful deposed to an affidavit in support of the application with the consent of the 2nd Applicant. The sum of the 1st applicant's case is that, on 17th of February, 2025 he caused his lawyer to issue a writ of summons and accompanying statement of claim against the 2nd Respondent herein and one other claiming against them the reliefs endorsed on the writ of summons. That he led a bailiff to have the Respondents served with a copy of the writ of summons and statement of claim as seen in exhibit 'A' an affidavit of service. That notwithstanding the fact that the 2nd Respondent has been duly served, on the 20th of February, 2025. The 2nd Respondent moved into the subject matter land housing the uncompleted building with land guards and has engaged workmen who are brazenly fencing around the land using sandcrete blocks as seen in exhibit 'B' series pictures. That for fear of the land guards he could not confront the 2nd Defendant but reported the matter to his lawyers. 1st Applicant contends that the 2nd Respondent is changing the character of the land completely knowing very well that the land is a subject matter of litigation pending before this honourable court.

That the behavior of the 2nd Defendant has brought the administration of justice into disrepute and same must not be countenanced by this honourable court. That the contemptuous act being committed by the 2nd Defendant if not punished by this court will bring the sanctity of the judiciary into question which may lead to future abuses by people with characters similar to that of the 2nd Respondent. That the 2nd Respondent having been served with his writ of summons and statement of claim has become aware that the land/uncompleted house has become a subject matter of litigation and need not do anything to overreach the honourable court pending the final determination of the suit.

The 2nd Respondent as is to be expected opposed the application to commit himself for contempt. In an affidavit in opposition filed on his behalf and deposed to by him, the 2nd Respondent one Rev. Francis Obeng Mensah denied the assertions contained in paragraphs 7-15 of the affidavit in support. That the Applicant has woefully failed to show that Respondent is in any way connected to the persons seen in exhibit 'B' series. That it is rather the Applicant who in a desperate move to annex the property subject matter of the instant suit is adding on to the existing two-bedroom structure which was constructed by Janet Asiedu, owner of the property subject matter of the instant suit. Exhibit 'FOM' series are pictures showing additions made by Applicant to the property in dispute. That save that, Respondent has been served with a copy of the writ of

summons and statement of claim, he has neither been served with an application for injunction nor an injunction order restraining him from any dealings with the land in dispute. The Applicant has woefully failed to disclose and satisfy the legal requirements which warrant an order for committal to lie against Respondent. That an order for committal being a quasi-criminal order, applicants are required to prove beyond reasonable doubt that Respondent has willfully disobeyed an order of the court. That I have never engaged in any activity that puts me in any position that brings the order of this court into disrepute. That the application is without merit and should be dismissed with punitive cost against Applicant.

On the 9th day of May 2025, Counsel for both parties made oral submissions in court.

Written submissions filed by both parties were taken into consideration

I have looked at all the processes filed and have also read the written submissions filed on behalf of the parties by their counsel.

Merriam-Webster's Dictionary of Law defines contempt of court as follows:

> *"Wilful disobedience or open disrespect of the orders, authority, or dignity of a court or a Judge acting in a judicial capacity by disruptive language or conduct or by failure to obey the court's orders".*

Contempt may be civil or criminal in nature. It may be contempt *in facia curiae* and it may be *ex facie curiae.*

In the case of **IN RE EFFIDUASE STOOL AFFAIRS (NO.2); REPUBLIC v. ODURO NUMAPAU, PRESIDENT OF THE NATIONAL HOUSE OF CHIEFS & OTHERS; EX PARTE AMEYAW II (NO.2) [1998-99] SCGLR 639**, the Supreme Court noted as follows, when it set out the distinction between the two main types of contempt known to the law, that:

"Contempt of Court was constituted by an act or conduct that tended to bring the authority and administration of the law into disrespect or disregard or to interfere with, or prejudice parties, litigants or their witnesses in respect of pending proceedings… Civil contempt are those quasi-contempt which consist in the failure to do something which the party is ordered by the court to do for the benefit or advantage of another party to the proceedings before the court, while criminal contempt are acts done in disrespect of the court or its process, or which obstruct the administration of justice or tend to bring the court into disrespect".

Contempt of Court is a quasi-criminal matter, and Osei-Hwere J (as he then was) held in the case of **REPUBLIC v. BEKOE; EX PARTE ADJEI [1982-83] GLR 91** that:

"The principle of law is quite clear that where a person is charged with contempt of Court, which involves his liberty, his guilt must be proved with the same strictness as that required in criminal trial, that is, proof beyond reasonable doubt".

The standard of proof in contempt proceedings is provided for under section 13 (1) of our Evidence Act, 1975 (NRCD 323) as follows:

"13 (1) in a civil of criminal action, the burden of persuasion as to the commission by a party of a crime which is directly in issue requires proof beyond a reasonable doubt".

In **AKELE v. COFFIE & ANOR. AND AKELE v. OKINE & ANOR. (CONSOLIDATED) [1979] GLR 84-90**, it was held that:

"In order to establish contempt of Court even when it was not criminal contempt but civil contempt, there must be proof beyond reasonable doubt that a contempt of Court has indeed been committed".

What is meant by reasonable doubt is simple that the court must be fully convinced and satisfied as far as the evidence is concerned that indeed the accused or indicted persons are guilty of the offence charged. As per Denning J (as he then was) in the case of Miller v Minister of Pensions [1947]2All ER371 at 373 on reasonable doubt

''it need not reach certainty, but it must carry a high degree of probability, proof beyond reasonable doubt does not mean proof beyond a shadow of doubt, the law would fail to protect the community if it admitted fanciful possibilities to deflect the course of justice''

Indeed, the ingredient that needs to be established in a civil contempt of this nature has been spelt out in the case of **REPUBLIC v. COURT OF APPEAL; EX PARTE SITO [2001-2002] 1 GLR 319 @ 336-337** where Adzoe JSC noted as follows:

"The type of contempt charged against the appellant involves wilful disobedience to the judgment or order, or other process of a court; it must import a demand to do or abstain from doing something. A refusal to comply with that demand of the court is what constitutes the offence of contempt which the courts consider as an obstruction to the fair administration of justice and also as an affront to the dignity of the court. The offence interferes with the administration of justice because it in effect denies a party his right to enjoy the benefits of the judgment or order; … Some degree of fault or misconduct must be established against the contemnor to show that his disobedience was wilful. Indeed, three essential elements in the offence appear to be identified by the authorities, namely: (1) there must be a judgment or order requiring the contemnor to do or abstain from doing something. (2) It must be shown that the contemnor knows what precisely he is expected to do or abstain from doing. (3) It must be shown that he failed to comply with the terms of the judgment or order, and that his disobedience is wilful.

In the case of **RANSFORD OPOKU & ORS. V. LIBHERR FRANCE SAS. PAUL JOOSTEN, 23RD November, 2011 Civil Appeal No. J/4 / 35/ 2011,** Atuguba JSC (as he then was), discussed the law of contempt as follows:

"Contempt of court is a long standing power of the common law. Its nature is fairly well settled. Its application however can be problematic in the particular circumstances of a case. A particular area has been the effect of the issue of a writ of summons on the rights of the parties thereto. There is an English view that the mere issue of a writ does not preclude a party from exercising his rights. The typical occasion of contempt has been conduct prejudicial to the determination of a pending motion."

Nonetheless, in Ghana, the Courts do assert contempt in relation to prejudice to the *res litiga* in a pending action. See BALOGUN v. EDUSEI (1938) 3 W.A.L.R 547, DOMBO v. NARH 1970 CC 68, REPUBLIC v. AKENTEN II; EX PARTE YANKYERA [1993-94] 1 GLR 246 C.A., and REPUBLIC v. EHA II AND OTHERS; EX PARTE TOGOBO & OTHERS [2003-2005] 1 GLR 328 C.A., among others.

S. A. Brobbey in his book, ***the Law of Chieftaincy in Ghana, 2008***, in addressing the issue of contempt arising in the absence of an order of the Court, made these comments at pages 479-480:

"Judicial power is the authority given to courts to decide any dispute referred to it by disputants. If neither the President nor Parliament has authority to take away judicial power, it is inconceivable that any individual or group of individuals can give onto themselves the power to take it away under any circumstance. The party will be considered as having despised the court and the judicial power by any conduct on his part that brings about the removal of or reduction in that power. Such conduct will amount to contempt of court."

In **REPUBLIC v. BANK OF GHANA & 5 OTHERS, EX PARTE BENJAMIN DUFFOUR, Civil Appeal No. J4/34/2018**, His Lordship Justice Baffoe-Bonnie stated:

"The judicial power of Ghana, by article 125(3) of the 1992 Constitution, has been vested in the Judiciary. This power cannot be fettered by any person, agency or organ including the President and Parliament. Any conduct that contravenes this provision is clearly unconstitutional and as such null and void. When a court is seized with jurisdiction to hear a matter, nothing should be done to usurp the judicial power that has been vested in the court by the Constitution of Ghana. In effect, the state of affairs before the court was seized with the matter must be preserved until the court delivers its judgment. This is so, whether or not the court has granted an order to preserve the status quo or not. A party to the proceedings will be in contempt if he engages in an act, subsequent to the filing of the case, which will have the effect of interfering with the fair trial of the

case or undermine the administration of justice. The conduct must be one which has the effect of prejudging or prejudicing the case even before a judgment is given."

Also, in **IN RE ONNY (CONTEMNOR) [1967] GLR 386 at page 483** of Brobbey's book,(supra) the applicant as the head of the Ghana Society of Religious Liberals had a dispute with other members of the society as to who was entitled to run a lottery on behalf of the society. Pending the determination of the dispute, the High Court made an interim order suspending the operation of the lottery. On behalf of the Principal Secretary, the Principal Assistant Secretary (PAS) wrote a letter suspending the license of the society and implying that the applicant had misappropriated funds belonging to the society. Counsel for the applicant applied for attachment for contempt of the PAS. It was held that the action of the PAS amounted to contumelious questioning of the conduct of the Court. It was aimed at prejudicing the fair trial of the substantive case and thus, to interfere intentionally with the administration of justice. He was convicted for contempt of Court. The conviction was upheld on appeal to the Court of Appeal as digested in (1968) CC 51.

Therefore, contempt of court may arise where a party, knowing that a case is *sub judice*, engages in an act or omission which tends to prejudice or interfere with the fair trial of the case, despite the absence of an order of the Court.

From the foregoing, it is the Applicant who bears the burden to establish beyond reasonable doubt that the Respondent has committed a contempt of Court. In doing so, the Applicant is required to adduce a *prima facie* evidence of contempt, before the Court will consider the defence put up by the Respondent. It is in this regard that the Supreme Court in **AGYENIM-BOATENG & 27 ORS. v. S. K. BOATENG [2009] SCGLR 154** said that:

> *"Since contempt of court was quasi-criminal and the punishment for it might include a fine or imprisonment, the standard of proof required was proof beyond reasonable doubt. An Applicant must, therefore, first make out a prima facie case of contempt before the Court considers the defence put up by the Respondent".*

ISSUE

Whether or not the Applicant has proved beyond reasonable doubt that the Respondent have committed contempt of court.

Can it be said that the Applicant in this matter before this court has satisfied the test in this civil contempt?

Order 43, rule 5 (1) of the High Court (Civil Procedure) Rules, 2004 (C.I. 47) state:

'Where (a) a person required by a judgment or order to do an act within a time specified in the judgment or order refuses or neglects to do it within that time or within that time as extended or

reduced under Order 80 rule 4; or (b) a person disobeys a judgment or order requiring the person to abstain from doing an act,

''the judgment or order may, subject to these Rules be enforced by ……an order of committal against that person or, where that person is a body corporate, against any director or other officer".

That there is no pending judgment or order of a court for the Respondent to abstain from doing an act or has willfully violated is not in dispute. In cases where there has been disobedience of a judgment or order of the court, order 45 r 5(1) of C.I.47 is the procedural law that deals with the contempt application, but all parties in this matter acknowledge that at the time when the purported disobedience occurred there was no order or judgment or pending order of the court. This application for contempt therefore falls under order 50 of C.I. 47 by the applicant.

Order 501(1) of CI 47 stats ''***the power of the Court to punish for contempt of court may be exercised by an order of committal.***

Therefore even though there was no specific order of the court that has been violated in this instant case, if it can be proved beyond reasonable doubt that the Respondent acted in a manner that is prejudicial to a pending matter before the Court, or a conduct that is prejudicial to *the res litiga, he will be in contempt.*

Counsel for Respondent argues that, in the Ex Parte Benjamin Duffuor case, notwithstanding the holding by the Supreme Court that, a party to proceedings will be in contempt if he engages in an act subsequent to the filing of the case which will have the effect of interfering with the fair trial of the case or undermine the administration of justice; the Supreme Court found that there are specific orders restraining the Respondent from evicting the Applicant from his place of residence hence the Respondents conduct in evicting the applicant from his place of residence in no way interfered with the fair trial nor was it capable of rendering the final judgment otiose or of not moment

What the counsel for Respondent in this case before me surreptitiously left out from that ruling is the fact that the Supreme Court went on further to hold that the Respondent/Bank's act of summarily dismissing the Applicant therein amounted to contempt of court. In fact one of the two issues raised in the Exparte Benjamin Duffuor ruling by the Supreme Court is: whether or not the respondents by summarily dismissing the appellant were in contempt of court. The Supreme Court held that though they did not invite or compel him to appear before a disciplinary committee, they disingenuously "**summarily dismissed**" him for **"gross misconduct**". . That in the absence of an order of the court, the case is one of contempt arising from an act which tends to prejudice or interfere with the fair trial of the case.

Again there is no doubt that the 1992 constitution guarantees the fundamental rights and freedoms of individuals;

Article 18(1) every person has the right to own property either alone or in association with others.

Article 18(2) No person shall be subjected to interference with the privacy of his home, property, correspondence or communication except in accordance with law and as may be necessary in a free and democratic society for public safety or he economic well-being of the country, for the protection of health or morals, for the prevention of disorder or crime or for the protection of the rights or freedoms of others.

Indeed article 18(1) of the 1992 provides protection of privacy of home and other property However from the same article 18(2) it is clear that the right of enjoyment is not absolute. It is subject to law and as may be necessary in a free and democratic society for public safety or..... For the prevention of disorder or crime or for the protection of the rights or freedoms of others

Hence article 18(2) provides instances where the rights of a person can be limited as in accordance with law as could happen in this instance, for where a party knowing that a case is sub judice, engages in an act or omission which tends to prejudice or interfere with the fair trial of the case despite the absence of an order of the court, that person when

proven will be guilty of contempt. Counsel arguments afore are therefore misconceived and should the evidence against the Respondent in this matter prove beyond reasonable doubt that the Respondent has engaged in the said acts after having been served with the writ of summons and statement of claim he will be guilty of contempt.

As stated earlier the Respondent has denied the charge against him and so the onus is on the Applicant to adduce cogent evidence to prove beyond reasonable doubt that the Respondent has acted in a manner prejudicial to the pending case before the court.

TETTEH V. THE REPUBLIC (2002) JELR 68286 (SC) quoting Brobbey JSC as he then was as follows:

''Whether or not a witness is a material witness depends on the quality and content of the evidence he is expected to offer in relation to the case on trial. He will be deemed to be material if the evidence expected from him is deemed to be so vital as to be capable of clearly resolving one way or the other an important and decisive issue of fact that is in controversy. The evidence must appear likely to have a profound impact on the facts of the case to the extent that if it is accepted as true it will compel the court to come to a conclusion that is different from the decision it has taken. Thus, for example, in the case of *R v. Adenjimah* (1942) 8 WACA 193 a witness was adjudged not to be a material witness because the court was of the view that whatever evidence he would give could not have

changed the decision reached by the trial court upon the evidence on record. But in *R v. Ansere* (1958) 3 WALR 385, where the evidence expected from the witness was found to be necessary to establish whether or not the accused was the person who took the monies he was alleged to have stolen, the court held that he was a material witness because his evidence would have made clear the accused is guilt or innocence; and the prosecution's failure to call him meant that they were unable to prove the offence of stealing with which he was charged.

Applying the principles to the evidence of the Applicant in this matter, exhibit 'B' are pictures taken on 21st February 2025 after the writ of summons was served on the Respondent. In those pictures trenches have been dug and filled with foundation concrete for the construction of a wall. Several blocks are also seen on a site. The pictures attached to their supplementary affidavit in support are dated 20th March 2024, and marked exhibit 'A'. In those pictures a dwarf wall has now been constructed on the earlier foundation. In the videos which forms part of exhibit 'B' series taken on 21st February 2025 there are some young people working on the site. When asked by the producer of the video whose site and upon whose instructions the young man was working on the site, he answered that he did not know the name of owner he was asked by his boss to come and work. When it comes to contempt of court the standard of proof as has already been discussed earlier is proof beyond reasonable doubt. Exhibits 'A' and 'B' as they stand alone cannot

substantiate a case of contempt against Respondent. Counsel for Applicant had stated in paragraphs 9 and 10 of his supplementary affidavit in support to the contempt application that they would seek leave of the court to subpoena a witness to testify that, they were engaged by the Respondent to construct the fence wall around the said property, however counsel failed to make the application and so the court deemed the Applicant to have abandoned that position. Because the Respondent has denied the allegation, the testimony of a witness of the Applicant would have offered strong evidence to link the Respondent to the offence. Such a witness was material as his evidence will be vital as to be capable of clearly resolving one way or the other an important and decisive issue of fact that is in controversy, which is whether or not the Respondent is the one who ordered the construction to go on in spite of the case being sub judice.

Again, even if the court is to depend on the video, the young man in it only stated that they were authorized by a Reverend, then when pushed further to mention the name of the Reverend he stated that he did not know the actual name of the Reverend. The court finds that the Respondent was not described on the writ as a Reverend. Importantly Rev is just a title affixed to a name and so does not suffice to prove his guilt. Proof of contempt cannot be established from exhibit 'B' series and exhibit 'A' as they stand. There was a need for more material evidence to corroborate and to nail the Respondent to the actions

complained about. Applicant has failed to discharge the burden of proof beyond reasonable doubt. Application for contempt is refused.

(SGD)

JUSTICE JANE HARRIET AKWELEY QUAYE (MRS.)

JUSTICE OF THE HIGH COURT

PARTIES: *APPLICANTS ARE PRESENT, RESPONDENT IS PRESENT*

LEGAL REPRESENTATION: *STEPHEN BILLY ADDOM HOLDING BRIEF OF KOFI BURAH ASOMANING FOR THE APPLICANTS, CHRISTIE PEARL ADOMAKO HOLDING BRIEF OF PROFESSOR KWAME GYAN FOR THE RESPONDENT.*